

26SMCV01353 26SMCV01353

County: los-angeles

Division: Civil Law and Motion

Department: 205

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Case Number: 26SMCV01353 Hearing Date: September 22, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ALLY BANK,

Plaintiff,

v.

GERALD JONES, et al.,

Defendants.

Case No.: 26SMCV01353

Hearing Date: September 22, 2026

[TENTATIVE] order RE:

plaintiff's application for pre-

trial writ of possession

BACKGROUND

This is a breach of contract case. Plaintiff Ally Bank is the assignee of a written contract ("Contract"), pursuant to which Defendant Gerald A. Jones aka Gerald Jones bought from the Plaintiff's assignor a used 2021 Tesla Model Y motor vehicle, Vehicle Identification No. 5YJYGDEE4MF099066 (the Tesla). Plaintiff is the holder of a first priority security interest in the Tesla.

Defendant defaulted on the Contract by failing to make payments due and owing from February 2, 2025 and thereafter. The account was charged off on June 30, 2025, and the current balance due and unpaid is \$37,353.04, together with other charges as provided in the Contract.

The Contract provides that upon any default, Plaintiff may take and have immediate possession of the Tesla. Prior to filing this action, Plaintiff made a demand on Defendant to surrender the Tesla, but Defendant has failed or refused to do so. At the commencement of this action, the average wholesale value of the Tesla is \$20,625, and the average retail value is \$24,950.

The operative complaint alleges two claims for (1) claim and delivery and (2) money on contract. Under the first cause of action, Plaintiff seeks a pre-trial Writ of Possession directing Defendant to transfer possession of the car to Plaintiff and a Temporary Restraining Order, preventing Defendant from transferring possession of the car, concealing it from Plaintiff, and taking any other action which would harm Plaintiff's interest. The second cause of action seeks damages of \$37,353.04 but less any amounts to be credited to Defendant and less any proceeds of sale should Plaintiff obtain possession of the car.

This hearing is on Plaintiff's application for writ of possession and a turnover order. Plaintiff argues that it has shown a probable validity of prevailing on its cause of action for claim and delivery.

LEGAL STANDARD

A writ of possession is issued as a provisional remedy in a cause of action for claim and delivery, also known as replevin. (See Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1288.) This provisional remedy is available in any action in which a plaintiff asserts a present right to the possession of personal property. (Costello v. Bell (1915) 27 Cal. App. 102, 104.)

Generally, a valid writ of possession procedure must include: (1) an opportunity for a pre-seizure hearing, (2) an ex parte seizure in only extraordinary cases; and (3) a showing of probable cause as to both the claim's validity and to the property's location. (See 6 Witkin, California Procedure (5th ed. 2008) § 249, pp. 199-200.)

Upon the filing of the complaint for claim and delivery or replevin, or at any time thereafter, a plaintiff may apply for an order for a writ of possession. The parties must use the mandatory approved Judicial Council forms in a claim and delivery proceeding. (Judicial Council Forms CD-100, et seq.).

At the hearing, the Court decides the merits of the application based on the pleadings and declarations. (Code Civ. Proc., § 512.050.)

ANALYSIS

Plaintiff has stated a probable validity of prevailing on its claim for replevin. The elements for a replevin claim are: (1) the plaintiff's right to possession of the property; (2) the defendant's wrongful possession; and (3) damages as a result of the wrongful withholding. (See 5 Witkin, Cal. Procedure (4th ed. 1997) Pleading, §§ 651-659.)

Here, Plaintiff has submitted the declaration of its employee, Valerie Molina. Ms. Molina's duties include the review of accounts for litigation. Ms. Molina attests that the Contract is in default, and there is a balance due and owing in the sum of

\$37,353.04 together with other charges.

Plaintiff has also identified the location of the Tesla, which is either at 728 W. 124th St., Los Angeles, CA 90044 or 38112 Miramonte Ave. Palmdale, CA 93551. Plaintiff's records reflect that Defendant lives at either or both of these addresses.

As such, the Court grants Plaintiff's application for writ of possession. Upon issuance of the writ of possession, the Court may also order Defendant to turn over the Tesla directly to Plaintiff. Because the requirements for issuance of the writ of possession are met, the Court will also issue a turnover order.

Code Civ. Proc. section 515.010 requires an undertaking to be filed before the writ issues in the amount of "not less than twice the value of the defendant's interest in the property." However, "[i]f the court finds that the defendant has no interest in the property, the court shall waive the requirement of the plaintiff's undertaking and shall include in the order for the issuance of the writ the amount of the defendant's undertaking sufficient to satisfy the requirements of subdivision (b) of Section 515.020." (Cal. Code. Civ. Proc. § 515.010(b).)

In turn, section 515.020(b) provides that a defendant may prevent a successful applicant from taking possession of the subject property, or otherwise regain custody, by filing an undertaking in an amount equal of plaintiff's costs in the action, and "all damages that the plaintiff may sustain by reason of the loss of possession of the property."

Here, Plaintiff provides evidence that the amount owed by Defendant (over \$37,000) exceeds the market value of the Tesla (between \$20,625 and \$24,950). Defendant has no interest in the Tesla pursuant to the Contract. Thus, no undertaking from Plaintiff is required.

As to the amount of Defendant's undertaking, the Court concludes it is the current market value of the Tesla, which is at least \$20,625. Accordingly, in the event Defendant wants to

prevent Plaintiff from taking possession of the Tesla pursuant to this Court's writ of possession, he must file an undertaking in the amount of \$20,625.

Plaintiff also seeks to examine Defendant on among other things, the current location of the Tesla in the event it is not at either address indicated in Plaintiff's application for writ of possession. The Court grants the request pursuant to Cal. Civ. Proc. Code section 512.050.

Section 512.050 provides that at the hearing on an application for writ of possession "the court shall make its determinations upon the basis of the pleadings and other papers in the record; but, upon good cause shown, the court may receive and consider additional evidence and authority produced at the hearing or may continue the hearing for the production of such additional evidence, oral or documentary, or the filing of other affidavits or points and authorities." Section 512.050, therefore, authorizes the Court to allow the examination of Defendant.

CONCLUSION

For the foregoing reasons, the Court GRANTS Plaintiff's application for writ of possession and issues a turnover order requiring Defendant to turn over to Plaintiff a 2021 Tesla Model Y motor vehicle, Vehicle Identification No. 5YJYGDEE4MF099066.

IT IS SO ORDERED.

DATED: September 22, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court